

26NNCV01421 26NNCV01421

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2CT%2C07%2F10%2F2026

Source SHA-256: 2bf21c715e5a916d338245e0d3ea203f4054c222b3a089484fa5466762dc87bb

Case Number: 26NNCV01421 Hearing Date: July 10, 2026 Dept: T

Jose Flores, an

individual vs. Vallarta Food Enterprises, Inc., a California Corporation

(1)

Demurrer to Plaintiff's Complaint; (2) Motion to Strike Portions of Plaintiff's Complaint

Moving Party: Defendant

Vallarta Food Enterprises, Inc.

Responding Party: Plaintiff

Jose Flores

Tentative Ruling: (1) Overrule; (2) Grant

BACKGROUND

On February

27, 2026, Plaintiff Jose

Flores ("Plaintiff")

filed a complaint for against Defendants Vallarta Food Enterprises, Inc., a California Corporation ("Defendant"), and Doe and Roe defendants 1 through 50, alleging the following causes of action: (1) strict product liability; (2) breach of implied warranty of merchantability; (3) negligence and negligence per se; (4) and negligent infliction of emotional distress.

Defendant now concurrently demurs to the first and

third causes of action and moves to strike the punitive damages allegations

from the complaint.

Plaintiff opposes, and Defendant replies.

MOVING

PARTY POSITION

A. Demurrer

Defendant

argues that Plaintiff's strict product liability cause of action fails to state facts sufficient to constitute a cause of action, as neither federal nor state law regarding food adulteration provides a private right of action for this claim. Defendant further argues that the cause of action is uncertain as it conflates strict product liability principles with alleged statutory violations under the FDCA and Sherman Law without clearly identifying a cognizable legal theory supporting the imposition of strict liability independent of those inapplicable statutes.

Defendant

argues that the negligence per se portion of the third cause of action is not an independent cause of action under California law and is thereby subject to demurrer. Defendant further argues that Plaintiff's negligence per se allegations are uncertain because the pleadings do not place Defendant on notice of which specific federal or state regulations Plaintiff alleges that it violated.

B. Motion to Strike

Defendant argues that Plaintiff's

punitive damages claims should be stricken because Plaintiff did not plead sufficient facts in the complaint to establish the requisite oppression, fraud, or malice by Defendant. The punitive damages claims are also insufficient against Defendant as a corporate employer.

OPPOSITION

A. Demurrer

Plaintiff

initially contends that the Court should overrule the demurrer because Defendant failed to meet and confer.

Plaintiff contends that his causes of action are not preempted and that his negligence per se cause of action is not uncertain.

B. Motion to Strike

Plaintiff contends that the Court should deny the motion because Defendant failed to meet and confer. Plaintiff also contends that Defendants are incorrect regarding the sufficiency of his allegations in support of punitive damages.

REPLY

A. Demurrer

Defendant responds that Plaintiff's opposition consists almost entirely of twelve pages of analysis lifted verbatim from the Ninth Circuit's opinion in Davidson v. Sprout Foods, Inc. (9th Cir. 2024) 106 F.4th 842, although Plaintiff never identifies the case by name in his opposition. Defendant distinguishes this Ninth Circuit decision and reiterates its arguments as to why neither of the cited federal or state regulations regarding food adulteration authorize a private right of action. Defendant also responds that Plaintiff effectively concedes that negligence per se is not an independent cause of action in his opposition.

B. Motion to Strike

Defendant responds that the complaint fails to set forth sufficient facts establish malice, oppression, or fraud, and that Plaintiff's opposition fails to address the lack of requisite allegations to establish a punitive damages claim against Defendant as a corporate employer.

ANALYSIS

I. Legal Standard

A. Demurrer

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc. §§ 422.10, 589; see, also, *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of the ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (*Donabedian*, supra, 116 Cal.App.4th at p. 994.)

The general rule is that the plaintiff need only allege ultimate facts, not evidentiary facts. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) "All that is required of a plaintiff, as a matter of pleading, even as against a special demurrer, is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source and extent of his cause of action." (*Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 156-157.)

"A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822 [quoting *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616].) Demurrers "for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond." (*Mahan v. Charles W. Chan Ins. Agency, Inc.* (2017) 14 Cal.App.5th 841, 848, fn. 3, internal quotations omitted; accord *Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135.) "A demurrer for uncertainty should be overruled when the facts as to which the complaint is uncertain are presumptively within the defendant's knowledge." (*Chen*, supra, 33 Cal.App.5th at p. 822.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden

is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

B. Motion to Strike

California law authorizes a party's motion to strike matter from an opposing party's pleading if it is irrelevant, false, or improper. (Code Civ. Proc. §§ 435, 436(a).) Motions may also target pleadings or parts of pleadings which are not filed or drawn in conformity with applicable laws, rules or orders. (Code Civ. Proc. § 436(b).) A motion to strike is used to address defects that appear on the face of a pleading or from judicially noticed matter but that are not grounds for a demurrer. (Pierson v Sharp Memorial Hospital (1989) 216 Cal.App.3d 340, 342; see, also, City & County of San Francisco v Strahlendorf (1992) 7 Cal.App.4th 1911, 1913 [motion may not be based on a party's declaration or factual representations made by counsel in the motion papers].) In particular, a motion to strike can be used to attack the entire pleading or any part thereof – in other words, a motion to strike may target single words or phrases, unlike demurrers. (Warren v. Atchison, Topeka & Santa Fe Railway Co. (1971) 19 Cal.App.3d 24, 40.)

The Code of Civil Procedure also authorizes the Court to act on its own initiative to strike matters, empowering the Court to enter orders striking matter “at any time in its discretion, and upon terms it deems proper.” (Code Civ. Proc. § 436.)

1. Punitive Damages

Punitive damages may be imposed where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) “Malice” is conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on with a willful and

conscious disregard of the rights or safety of others. (Civ. Code, § 3294, subd. (c)(1).) “Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff’s rights, a level which decent citizens should not have to tolerate.’

[Citation.]” (Lackner v. North (2006) 135 Cal.App.4th 1188, 1210.)

“As amended to include [despicable], the [Civil Code section 3294] plainly indicates that absent an intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and conscious’ disregard of the plaintiffs’ interests. The additional component of ‘despicable conduct’ must be found.” (College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) The statute’s reference to despicable conduct represents a “new substantive limitation on punitive damage awards.” (Ibid.) Despicable conduct is “conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. Such conduct has been described as ‘having the character of outrage frequently associated with crime.’ [Citation.]” (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1287.) And there also “must be evidence that defendant acted with knowledge of the probable dangerous consequences to plaintiff’s interests and deliberately failed to avoid these consequences.” (Flyer’s Body Shop Profit Sharing Plan v. Ticor Title Ins. Co. (1986) 185 Cal.App.3d 1149, 1155.)

Further, “when seeking damages from an employer, an employer is not liable for punitive damages arising from an employee’s actions pursuant to Civil Code section 3294(a) unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. (Civ. Code § 3294, subd. (b).) With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation. (Ibid.)

A motion to strike punitive damages is properly granted where a plaintiff fails to state a prima facie claim for punitive damages, including well-pleaded allegations that defendant is guilty of oppression, fraud or malice. (Turman v. Turning Point of Cent.

California, Inc. (2010) 191 Cal.App.4th 53, 63.) "Mere negligence, even gross negligence, is not sufficient to justify such an award" for punitive damages. (Kendall Yacht Corp. v. United California Bank (1975) 50 Cal.App.3d 949, 958.) Moreover, conclusory allegations are not sufficient to support a claim for punitive damages. (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 872.) Lastly, "[t]he mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud, or malice, but facts must be alleged in the pleading to support such a claim." (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166.)

II. Meet and Confer

Per the declaration of Defendant's counsel Penelope Tulifau, she was unable to meet and confer with Plaintiff to discuss the issues underlying both the instant demurrer and motion to strike. (Tulifau Decl., at p. 1.) Nevertheless, even if Defendant's meet and confer effort was found to be insufficient, "[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer." (Code Civ. Proc. § 430.41, subd. (a)(4).) In addition, "[a] determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike." (Code Civ. Proc. § 435.5, subd. (a)(4).)

III. Discussion

A. Demurrer

i. Strict Product Liability (First Cause of Action)

"Strict tort liability jurisprudence based on a defect applies to food served in a restaurant." (Livingston v. Marie Callender's, Inc. (1999) 72 Cal.App.4th 830, 836.) "[I]n deciding the liability of a restaurateur for injuries caused by harmful substances in food, the proper tests to be used by the trier of fact are as follows: If the injury-producing

substance is natural to the preparation of the food served, it can be said that it was reasonably expected by its very nature and the food cannot be determined unfit or defective. A plaintiff in such a case has no cause of action in strict liability or implied warranty. If, however, the presence of the natural substance is due to a restaurateur's failure to exercise due care in food preparation, the injured patron may sue under a negligence theory." (Mexicali Rose v. Superior Court (1992) 1 Cal.4th 617, 633.) "If the injury-causing substance is foreign to the food served, then the injured patron may also state a cause of action in implied warranty and strict liability, and the trier of fact will determine whether the substance (i) could be reasonably expected by the average consumer and (ii) rendered the food unfit or defective." (Ibid.) "The term 'natural' refers to bones and other substances natural to the product served, and does not encompass substances such as mold, botulinus bacteria or other substances (like rat flesh or cow eyes) not natural to the preparation of the product served." (Id. at p. 630, fn. 5.)

Here, Plaintiff alleges that he ordered and consumed fried chicken and a carne asada burrito prepared by staff at Defendant's grocery store, resulting in food poisoning from alleged Salmonella contamination. (Compl. ¶¶ 18–26.) Construed liberally, the alleged presence of Salmonella in the food Plaintiff consumed is sufficient to support a claim for strict products liability under California law. Based on the pleadings, the Court cannot determine, as a matter of law, whether the alleged presence of the injury-causing Salmonella was natural to the preparation of the fried chicken or carne asada burrito that Plaintiff consumed.

Although Defendant argues that this cause of action improperly relies on alleged violations of the Federal Food Drug and Cosmetic Act (the "FDCA") and of California's Sherman Food, Drug, and Cosmetic Law ("Sherman Law") based on the label used by Plaintiff, "[i]t has long been established that in ruling on a demurrer, the trial court is obligated to look past the form of a pleading to its substance." (Saunders v. Cariss (1990) 224 Cal.App.3d 905, 908; id. ["Erroneous or confusing labels attached by the inept pleader are to be ignored if the complaint pleads facts which would entitle the plaintiff to relief."].) Moreover, though the Court agrees that these statutes do not authorize or provide private rights of action for violation, Plaintiff appears to rely on the adulteration definitions offered by federal and state law to support his allegations that the alleged presence of Salmonella in the food rendered it unfit for human

consumption. (Compl. ¶¶ 27–33; see *Mexicali Rose*, supra, 1 Cal.4th at pp. 632 –633, fn. 7 [examining both federal and state health safety standards in determining if ordinary consumers could reasonably expect a chicken pie to be free of all bones].) Accordingly, given the alleged presence of *Salmonella* in the consumed food, Plaintiff sufficiently states a cause of action for strict liability, despite the confusing label. Nor are the allegations uncertain, as the complaint contains enough facts to apprise Defendant of the basis for Plaintiff's strict liability claim.

Thus, the demurrer to the first cause of action is overruled.

ii. Negligence

Per Se

“[T]he doctrine of negligence per se does not establish tort liability. Rather, it merely codifies the rule that a presumption of negligence arises from the violation of a statute which was enacted to protect a class of persons of which the plaintiff is a member against the type of harm that the plaintiff suffered as a result of the violation.” (*Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1285.) “Accordingly, to apply negligence per se is not to state an independent cause of action. The doctrine does not provide a private right of action for violation of a statute.” (*Ibid.*) “Instead, it operates to establish a presumption of negligence for which the statute serves the subsidiary function of providing evidence of an element of a preexisting common law cause of action.” (*Id.* at pp. 1285–1286.)

Although negligence per se does not provide an independent right of action, as allegations of negligence per se are offered by Plaintiff under the same negligence cause of action brought by him against Defendant, the erroneous inclusion of “negligence per se” in the label of the third cause of action does not establish a negligence per se cause of action subject to demurrer. (See *Saunders*, supra, 224 Cal.App.3d at p. 908; see, also, *Parnham v. Parnham* (1939) 32 Cal.App.2d 93, 96 [“It is not what a paper is named, but what it is that fixes its character.”].) Furthermore, the Court notes that Defendant does not challenge the sufficiency of Plaintiff's general

negligence allegations under this cause of action and instead challenges only the negligence per se portion of this cause of action. However, as Defendant only challenges a portion of the third cause of action, the general demurrer does not lie as to the remainder. (Elder v. Pacific Bell Telephone Co. (2012) 205 Cal.App.4th 841, 856 [quoting Fire Ins. Exchange v. Superior Court (2004) 116 Cal.App.4th 446, 452] [“Ordinarily, a general demurrer does not lie as to a portion of a cause of action and if any part of a cause of action is properly pleaded, the demurrer will be overruled.”].)

Thus, the demurrer to the third cause of action is overruled.

B.
Motion to
Strike

Defendant seeks to strike the prayer for punitive damages from Plaintiff’s complaint.

However, as Defendant is a corporation, Code of Civil Procedure section 3294 requires that the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice “must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code § 3294, subd. (b).)

“‘Managing agents’ are employees who ‘exercise[] substantial discretionary authority over decisions that ultimately determine corporate policy.’ [Citation.] [The California Supreme Court in *White v. Ultramar, Inc.* (1999) 21 Cal.4th 563] concluded: ‘[T]he Legislature intended the term ‘managing agent’ to include only those corporate employees who exercise substantial independent authority and judgment in their corporate decisionmaking so that their decisions ultimately determine corporate policy.’ [Citation.] ‘[T]o demonstrate that an employee is a true managing agent under [Civil Code] section 3294, subdivision (b), a plaintiff seeking punitive damages would have to show that the employee exercised substantial discretionary authority over significant aspects of a corporation’s business.’ [Citation.]” (Davis v. Kiewit Pacific Co. (2013) 220 Cal.App.4th 358, 366.)

Here, Plaintiff still fails to

allege any facts regarding the person(s) who acted as managing agent(s) on behalf Defendant, as well as any facts regarding whether said agent(s) acted with the requisite knowledge and in the requisite manner to establish their liability for these claimed punitive damages as a corporate employer. (See generally Compl.) Nor do the allegations establish conduct that constitutes malice, fraud, or oppression by Defendant in the preparation of his food, or a conscious disregard of a known danger of contaminants in these food products that were prepared or offered by Defendant for purchase. (Ibid.; see Turman, supra, 191 Cal.App.4th at p. 63.)

Therefore,
as Plaintiff failed to plead sufficient facts to support his claim for punitive damages against Defendant, and as Plaintiff failed to show that a reasonable possibility exists of amending the complaint to cure these deficiencies, the motion to strike the punitive damages allegations is granted
without leave to amend.

RULING

Defendant

Vallarta Food Enterprises, Inc.'s Demurrer to Plaintiff Jose Flores's Complaint is OVERRULED.

Defendant's

Motion to Strike Portions of Plaintiff's Complaint is GRANTED without leave to amend.